

or other interest of or in any corporation, company, public body or society, without her husband as if she were a *feme sole*; and this seems to apply to trusts in existence at the time the Act was passed.

8. Where the *feme* has been married or the trust has been undertaken by her since the commencement of the Married Women's Property Act, 1882 (1 January, 1883), she can execute the trust without the concurrence of her husband, and as if she were a *feme sole* (b). Where therefore she is a trustee for sale she can exercise the discretion, pass the estate, and sign a good receipt for the purchase-money.]

9. *Feme sole*. — It is almost equally undesirable to appoint a *feme* who is single a trustee, for should she marry, [she would be liable to be influenced by her husband who, so long as he abstained from active interference, would be under no liability to make good any breaches of trust committed by her during the coverture.] The Court at *one time refused to appoint a *feme sole* a trustee, as, in the event of her marriage [it might lead to inconvenience as the husband would have the power of interfering] (a). But in a more recent case the M. R., after consulting with the other judges, appointed a *feme sole* a trustee (b), and the Lords Justices have since made a similar order (c).

[(b) 45 & 46 Vict. c. 75, ss. 1, 2, 5, 24. See *Kingsman v. Kingsman*, 6 Q. B. D. 122, 128. It is open to argument whether the 2d and 5th sections of the act apply to trust property, more particularly as the 18th section enables a married woman who is an executrix, administratrix, or trustee, to sue and be sued, and to transfer the trust property in certain special cases without her husband, as if she were a *feme sole*, and this section is to some extent redundant if the 2d and 5th sections apply to trust property. It is, however, clear from the 1st and 24th sections that a married woman may accept a trust, or the office of executrix or administratrix, as if she were a *feme sole*; and that her husband is exempted from all liabilities in respect of her breaches

of trust, so long as he does not act or intermeddle in the trust; and it would be a highly inconvenient construction of the act to hold that a married woman is not empowered to acquire, hold, and dispose of the trust property generally without the concurrence of her husband. And inasmuch as the language of sections 2 and 5 is wide enough to include trust property, it is conceived that any inference to be drawn from section 18 is not sufficient to restrict the operation of sections 2 and 5 to property belonging to married women beneficially. So now decided. *Re Docwra*, 29 Ch. D. 693.]

(a) *Brook v. Brook*, 1 Beav. 531.

(b) *Re Campbell's Trusts*, 31 Beav. 176.

(c) *In re Berkley*, 9 L. R. Ch. App. 720.